

2018 P L C 215

[Lahore High Court]

Before Jawad Hassan, J

INAM-UL-HAQ

Versus

ALLIED BANK LIMITED and 4 others

W.P. No.14327 of 2013, decided on 1st March, 2018.

Industrial dispute---

---Security Guard of a Bank---Absence from duty---Misconduct---Termination from service---Scope---Petitioner being Security Guard in the Bank absented himself from duty due to which his services were terminated---Grievance petition filed by the employee was dismissed concurrently---Validity---Employee was found to have committed the act of misconduct as he left the Branch of the Bank which was a locker holding Branch without any compelling circumstances---Bank remained unguarded despite the fact that nature of petitioner's job required to be performed by him was sensitive---Absence from duty by the employee caused major loss to the Bank---Petitioner had failed to make out a case of reinstatement into service---Constitutional petition was dismissed in circumstances.

Izzat Baig Awan v. Habib Bank Limited 2004 SCMR 98 and Muhammad Yousaf Khan v. Habib Bank Limited through President and others 2004 SCMR 149 ref.

Muhammad Ali S. Bukhari v. Federation of Pakistan through Establishment Secretary, Islamabad and 2 others 2008 PLC (C.S.) 428; Muhammad Saleem and 2 others v. Agricultural Development Bank of Pakistan, Islamabad and another 2003 PLC (C.S.) 36 and Izzat Baig Awan v. Habib Bank Limited 2003 PLC (C.S.) 938 = 2004 PLC (C.S.) 98 rel.

Muhammad Rasib Khan for Petitioner.

Riaz Hussain Haleem for Respondents.

JUDGMENT

JAWAD HASSAN, J.---Through the instant Constitutional petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has challenged the order dated 17.03.2008 and judgment dated 12.03.2012 passed by the Respondents Nos.4 and 5 respectively.

2. Brief facts revealing from the petition are that the Petitioner was terminated from service

on the charge of being absent from duty without any intimation and in his absence equipment/items of the Bank were stolen. Feeling aggrieved thereby the Petitioner filed grievance petition before the respondent No.4 which was dismissed vide the impugned order dated 17.03.2008. The said order was assailed by the Petitioner before the Respondent No.5 who also dismissed his Appeal side the impugned judgment dated 12.03.2012. Hence, this petition.

3. Learned counsel for the Petitioner inter alia submitted that the impugned order and judgment are against the law and facts; that the alleged charge sheet was time barred in view of standing order 15(4) of the Ordinance-VI 1968, therefore, the impugned letter of dismissal has no value in the eye of law; that the domestic inquiry was defective as no opportunity of cross-examination has been provided to him; that the Petitioner has been condemned unheard as no opportunity of personal hearing was ever given to him which is against the principle of natural justice.

4. On the other hand learned counsel for the Respondents vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that there is concurrent finding by both the Courts below which cannot be interfered; that the impugned order as well as the judgment are in accordance with law. Learned counsel for the Respondents, in support of his contentions, has placed reliance on the case titled Muhammad Ali S. Bukhari v. Federation of Pakistan through Establishment Secretary, Islamabad and 2 others (2008 PLC (C.S.) 428 [Supreme Court of Pakistan]), Muhammad Saleem and 2 others v. Agricultural Development Bank of Pakistan, Islamabad and another (2003 PLC (C.S.) 36 [Supreme Court of Pakistan], Izzat Baig Awan v. Habib Bank Limited (2004 SCMR 98), Muhammad Yousaf Khan v. Habib Bank Limited through President and others (2004 SCMR 149).

5. I have heard the arguments by the learned counsel for the parties and perused the record.

6. From the perusal of record it reveals that the Petitioner was a Gunman/Security Guard in the Respondents/Bank and he was dismissed from service on the allegation of gross misconduct. He was charge sheeted as under:

"That while you were posted on night duty in the Branch which is locker holding branch, on 07.01.2006 you remained unauthorized absent from your duty at Night. You neither applied for leave nor any leave was granted to you. As a result on 07.01.2006 at Saturday night some burglars entered in the branch premises. They caused damage and stole equipment/items from the branch."

7. Subsequently, after proper inquiry he was dismissed from service vide letter dated 19.07.2006. Against his dismissal order he filed a grievance petition before the Respondent No.4 who dismissed the same. Thereafter, he preferred an Appeal before the Respondent No.5 which too met with the same fate. The perusal of impugned order dated 17.03.2008 reveals that the Respondent No.4 after analyzing the material available on record found that the plea of the Petitioner that his mother in law was met with an accident therefore, he was compelled by the circumstances to leave the bank unattended, is not reliable and proved. He observed that the Petitioner was under an obligation to take reasonable step in all circumstances but he left the bank alone on the mercy of dacoits and set out to attend his mother in law. It is a gross

misconduct of the Petitioner which resulted defame the reputation of the bank which is almost important for the commercial establishment. He further observed that the Petitioner was issued a show-cause notice, he joined the inquiry proceedings and signed on each page of the inquiry proceedings as a token of correctness. The Petitioner did not object to the inquiry officer that inquiry is incomplete or it is not satisfactory. In his statement he deposed in the cross-examination that he got recorded his statement in the inquiry proceedings and he was satisfied with the proceedings. The Respondent No.4 in the impugned order found that the inquiry was conducted in accordance with law without any flaw.

8. Moreover, the impugned judgment dated 12.03.2012 also upheld the order of the Respondent No.4 by observing that although the Petitioner had served the bank for a long period but the humiliation/disgrace and financial loss which the bank suffered is equally of grave nature as such there seems to be no warrant for the Tribunal to interfere with the impugned order passed by the learned Labour Court which otherwise appears to be just and proper. As the Hon'ble Supreme Court of Pakistan in case titled Izzat Baig Awan v. Habib Bank Limited (2003 PLC (C.S.) 938) = (2004 PLC (C.S. 98)) has held as under:

"Institution of banking is one of trust reposed by public at large and Bank Authorities in peculiar nature of the duties of their employees cannot afford breach of trust by retaining in service people who are involved in criminal cases."

9. From the above, it has been established that the Petitioner was found to have committed the act of gross misconduct because he left the branch which was a locker holding branch unattended without any compelling circumstances and the branch remained unguarded despite the fact that the nature of Petitioner's job required to be performed by him, was extremely sensitive and resultantly, his absence caused major loss to the Bank. In this regard reliance is placed on the case titled Muhammad Ali S. Bukhari v. Federation of Pakistan through Establishment Secretary, Islamabad and 2 others (2008 PLC (C.S.) 428) wherein the Hon'ble Supreme Court of Pakistan has held that absence from duty without leave, even if not wilful, but same being an act of disorder in service, would constitute 'misconduct'. The Hon'ble Supreme Court of Pakistan in case titled Muhammad Saleem and 2 others v. Agricultural Development Bank of Pakistan, Islamabad and another (2003 PLC (C.S.) 36) has also held that there is no cavil to the proposition that the procedural irregularities in the financial institutions cannot be taken lightly and the officials responsible for such irregularities must be proceeded against for an appropriate action under the relevant rules by the competent authority.

10 The learned counsel for the Petitioner has not been able to make out a case of reinstatement into the service of the Petitioner. He has not produced any cogent and confidence inspiring reasons to interfere in the concurrent findings of both the impugned order and judgment.

11. In view of what has been discussed above, the instant petition being bereft of any force, is hereby dismissed.

